

Manjit Singh And Others vs The State Of Punjab on 12 May, 2010

Bench: Hemant Gupta, Jaswant Singh

Murder Reference No.3 of 2008

[1]

IN THE HIGH COURT OF PUNJAB AND HARYANA AT
CHANDIGARH

Date of Decision : May 12, 2010

(i) Murder Reference No.3 of 2008

The State of Punjab

....Prosecutor

Versus

Manjit Singh and others

....Respondents

Present :

Shri H.S.Brar, Add. Advocate General, Punjab,
for the Public Prosecutor.

Shri Khushaldeep Singh Sandhu, Advocate
for Respondents No. 1 to 3.

Shri R.S.Cheema, Sr. Advocate, with
Mr. J.S.Mehandiratta, Advocate, for the respondent No. 4.

Shri S.S.Salar, Advocate, for the complainant.

(ii) Criminal Appeal No.7-DB of 2008

Manjit Singh and others

....Appellants

Versus

The State of Punjab

....Respondent

Present : Shri Khushaldeep Singh Sandhu, Advocate,
for the appellants.

Shri H.S.Brar, Add.AG, Punjab,
for the respondent.

Mr. S.S. Salar, Advocate, for the complainant.

(iii) Criminal Appeal No.25-DB of 2008

Harjinder Singh

...Appellant

Versus

Murder Reference No.3 of 2008

[2]

The State of Punjab

...Respondent

Present : Mr. R.S.Cheema, Sr. Advocate, with
Mr. J.S.Mehandiratta, Advocate, for the appellant.

Mr. H.S.Brar, Add.AG, Punjab, for the respondent.

Mr. S.S. Salar, Advocate, for the complainant.

CORAM: HON'BLE MR. JUSTICE HEMANT GUPTA
HON'BLE MR. JUSTICE JASWANT SINGH

HEMANT GUPTA, J.

This order shall dispose of Murder Reference No.3 of 2008, Criminal Appeal Nos.7-DB of 2008 and 25-DB of 2008 arising out of judgment of conviction dated 11.12.2007 vide which Manjit Singh son of Jaswant Singh, Satwant Singh son of Hakam Singh, Harwinder Singh @ Binder Singh son of Ajit Singh and Harjinder Singh son of Dalip Singh were convicted for the culpable homicide amounting to murder of Baghel Singh son of Harjinder Singh (aged 20 year) and order of sentence dated 19.12.2007 sentencing the above- named accused to death, subject to confirmation of this Court.

Criminal Appeal No.7-DB of 2008 has been preferred by Manjit Singh, Satwant Singh and Harwinder Singh (hereinafter referred as 'the assailants') and Criminal Appeal No.25-DB of 2008 has been filed by Harjinder Singh against the judgment of conviction and order of sentence.

The prosecution case was set in motion on the letter (Exhibit P.1) of one Manandeep Singh addressed to the Principal, Lala Lajpat Rai Memorial Polytechnic, Ajitwal, Moga on 22.1.2003. Manandeep Singh, a student of the aforesaid college, has reported in respect of incident happened at about 9.15 PM on 21.01.2003. He has stated that yesterday night, Baghel Singh, a student of college (Roll No.308/2K) met him at STD booth. He made a telephone call from that STD booth. After call, he had his dinner at Babu Chicken Center. He was with him all this time. Then he came to Sandhu Patti Gurudwara alongwith him from where they went to their respective rooms. At about 10.15/10.30 PM, Baghel Singh came running to his room and told him that 4-5 persons are drinking liquor in his room by breaking upon the locks. He has come after closing door earl and requested him to call landlord and that he is going to his room. Manandeep Singh went to the house of his landlord. Due to night time, all of them were sleeping and none responded. Thereafter, he went towards his (Baghel Singh) room. A person came out and asked him to go from the spot. The said person went towards G.T. road. He went to his room. In the morning, he went to the room of Baghel Singh, but found him absent. Door of his room was lying broken. He felt that things are not right. He sought action be taken. The Principal of the college forwarded the letter to the SHO, P.S. Mehna. On the basis of such communication, SI Ajaypal Singh SHO, P.S.Mehna, sent ruqa Exhibit P.12 to the Police Station at about 3.30 PM for registration of FIR. FIR Exhibit P.13 for the offences punishable under Sections 363/452/149 IPC was lodged at 4.00 PM.

On 22.1.2003 itself, SI Ajaypal Singh recorded statement of Manandeep Singh under Section 161 Criminal Procedure Code (for short referred as Code) Ex P-2. It has been recorded that at the time of writing of application submitted to the Principal Nar Singh Dass Aggarwal, he was nervous and he could not state complete facts. Manandeep Singh in his statement recorded under Section 161 of the Code stated that on 21.1.2003 he returned back to Ajitwal from Ludhiana after his practical training. At about 7.30 PM, he came to bus-stand for tea, where Jugraj Singh @ Guggi son of Jaswant Singh, resident of Ajitwal, Manjit Singh @ Sodhi and two young persons out of whom one was sikh and the other was Hindu (mona) came in a Esteem car of white colour bearing No.DL-9C-4915. They asked him, whether Baghel Singh or any of his room partners is in the room or not. He told Jugraj Singh etc. that none of them is here today, they might come tomorrow as the classes are to be started tomorrow. Thereafter, these four persons went to village in their car and after having tea, he came to his room. At about 9.00 PM, he came to the market to make a call to his home, then Baghel Singh, who is studying in Polytechnic College with him and residing in a room rented out by Jugraj Singh @ Guggi, met him at STD booth. Both of them made calls to their respective homes from the said booth. Thereafter, Baghel Singh had his dinner at Babu Chicken Centre. It was further stated that when he reached near Sandhu Patti Gurudwara, he saw the same white colour Esteem car of above said number coming out from the house of Jugraj Singh @ Guggi, which was being driven by Manjeet Singh Sodhi whereas Jugraj Singh @ Guggi was sitting on adjoining seat.

The investigating officer went to the spot, prepared rough site plan on the same date i.e. 22.1.2003. He found that 6/7 students were residing as tenants in three rooms of Jugraj Singh son of Jaswant Singh. He observed blood stains on cement in which wooden planks were affixed. Exhibit P.3 is the recovery memo of blood stained cement of the door and sample cement from the spot. The same were put in two plastic boxes, converted into parcels and sealed with the seal 'APS'. The seal was handed over to ASI Surjit Singh. Manandeep Singh is one of the attesting witness of such recovery.

The investigating officer also found four glass tumblers on a bench in the room of Baghel Singh and a bottle of country made liquor from which, the substantial liquor was found consumed. He also observed finger prints on glass tumblers and on liquor bottle. Exhibit P.14 is the recovery memo of four glasses from the spot lying on wooden bench. Said glasses were kept in wooden boxes and converted into parcels, sealed with the seal 'APS'. Exhibit P.15 is the recovery memo of bottle with label of 'Santra' Marka liquor from the spot. The same was also kept in a wooden box, converted into parcel and sealed with the seal 'APS'. The Investigating Officer also found foot prints on earth and unpaved portion of courtyard. Exhibit P.16 is the recovery memo of four different foot moulds prepared with the help of P.O.P of the foot prints found by the IO. The moulds prepared were converted into four different parcels sealed with seal 'APS'. Exhibit P.17 is the recovery memo of one broken lock, one turban of black colour and three wooden sticks also found in the room of Baghel Singh. The same were converted into separate parcels and sealed with the seal 'APS'. The seals of parcels Exhibit P.14 to P.17 were handed over to Harjinder Singh. All these recoveries effected on 22.1.2003 are in the presence of Harjinder Singh (accused-appellant) except that of sample cement and blood stained cement from the room, which are witnessed by Manandeep Singh. The IO recorded statement of Harjinder Singh, Manandeep Singh and ASI Surjit Singh, another witness of the recoveries on 22.1.2003 under section 161 of the Code.

On 26.1.2003, SI Ajaypal Singh, the Investigating Officer recorded the statements of Bhajan Singh (at page 331 of LCR) and Surjit Singh (at page 127 of LCR) both from Kapurthala, the area of accused Harjinder Singh when he was present at bus-stop Ajitwal. The said statement of Bhajan Singh is to the effect that on 21.1.2003, he along with Surjit Singh was going from Jagraon to Kapurthala by his private jeep after doing his private work. Surjit Singh told him that they have to meet a well known boy, who is studying in Lala Lajpat Rai Memorial Polytechnic these days and is living in a rented room. At 10.30, when they reached near the rented room of Jaipal Singh at Ajitwal, three persons were putting a young boy in a vehicle bearing Registration No. DL9C4915. Fourth young boy turned back on them. Surjit Singh asked one of the young boys as to what happened to him. It was replied that he is Baghel Singh, student of Lala Lajpat Rai Memorial Polytechnic and is seriously ill and they were taking him to the Doctor.

Exhibit P.39 is the statement of one Balwinder Singh son of Jangir Singh recorded on 28.1.2003. He disclosed that he has found a totally naked headless dead body, lying near opening of pacca khal on right side. Such dead body was found near the electric motor at about 11.00 AM. He informed about the dead body to Ruldi Singh son of Chaggar Singh resident of Village Buraj Hari Ka. Thereafter, both of them came to the village and informed the respectables, who asked them to inform at police post. On the way, ASI Satya Parkash met them and recorded his (Balwinder Singh) statement. On the basis of such statement, ruqa Exhibit P.40 was sent to the Police Station Sadar, Kot Kapura for registration of FIR at about 12.10 PM. FIR No.12 dated 28.1.2003 under Section 302 IPC was registered. Exhibit P.3 is the inquest proceedings prepared by ASI Satya Parkash on 28.1.2003 before sending the dead body for post-mortem examination with a note that after post-mortem thumb and finger print marks be taken, so that whereabouts of the unknown person be located. Vide Exhibit P.42/42-A, ASI Satya Parkash sought post-mortem examination from the Doctor Incharge of G.G.S. Medical College & Hospital, Faridkot at about 3.00 PM. PW11-Dr. A.S. Thind has conducted post mortem examination, the report of which is Exhibit P.1.

It was on 29.1.2003, on an information received from the Police Station Sadar, Kot Kapura, that a headless body has been found, SI Ajaypal Singh informed the mother of deceased Baghel Singh, requiring her to come present. She alongwith her sister, sister's husband Dr. Pritam Singh and some students including Manandeep Singh went to identify dead body. Vide Exhibit P.44 Ramandeep Singh son of Natha Singh and Gaganpreet Singh son of Surinder Pal, students of Lala Lajpat Rai Memorial Polytechnic, Ajitwal, identified the unknown dead body as that of Baghel Singh son of Harjinder Singh, student of Lala Lajpat Rai Memorial Polytechnic, Ajitwal, on the basis of identification marks mentioned therein. Exhibit P.45 is the identification memo by which Charanjit Kaur wife of Harjinder Singh identified the unknown dead body as that of Baghel Singh from the identification marks mentioned therein. Exhibit P.46 is the identification memo by which Kiranjit Kaur wife of Pritam Singh identified the unknown dead body as that of Baghel Singh, her nephew (Bhanja). Exhibit P.47 is the identification memo of the dead body as that of Baghel Singh by Pritam Singh husband of Kiranjit Kaur, as his brother-in-law's son. Vide Exhibit P.49, the dead body was received by SI Ajaypal Singh, SHO, P.S.Mehna. Exhibit P.50 is the cancellation report in respect of FIR recorded with Police Station Sadar, Kot Kapura as FIR No.3 dated 22.1.2003 for the offences under Sections 365/452/149 IPC has been registered in Police Station Mahena.

On 29.1.2003, Sub Inspector, Ajay Pal Singh, SHO, Police Station, Mehna, has sought samples from the dead body as well as of the mother of the deceased, Charanjit Kaur, for DNA test by making a request to Guru Gobind Singh Medical College & Hospital, Faridkot vide Exhibit P.26. Blood sample of Harjinder Singh was requested to be taken by the Investigating Officer on 14.2.2003 vide Exhibit P.8. The blood donation card for the purposes of DNA test of Baghel Singh is Exhibit P.6, whereas that of Charanjit Kaur is Exhibit P.5 and Harjinder Singh is Exhibit P.7. Exhibit P.30 is the report of the Central Forensic Science Laboratory, Calcutta in respect of samples for DNA test. It was concluded by the Senior Scientific Officer that the unidentified dead body cannot be excluded from being the offspring of Charanjit Kaur and Harjinder Singh.

On 7.2.2003, on the basis of secret information, an FIR No. 27 was recorded by the police of Police Station Jagraon for the offences under Sections 399, 402 IPC and under Section 25 of the Arms Act, 1959. In the aforesaid FIR, the three present assailants and one Sikandar Singh son of Chanan Singh; Harvinder Singh alias Chidda son of Bhajan Singh and Chhinda son of Bhajan Singh, were apprehended. A 12 bore country made pistol was recovered from Manjit Singh (one of the assailants). In respect of possession of the said country made pistol, FIR No. 28 dated 7.2.2003 was lodged in Police Station Jagraon. A country made 315 bore pistol was recovered from Harwinder Singh son of Ajit Singh, one of the assailants in the present case. FIR No. 29 dated 7.2.2003 for the offence under Section 25 of the Arms Act, 1959 was lodged in respect of the said country made pistol. The police of Police Station Jagraon recovered gold karra, finger ring and a wrist watch marked pulsar on 7.2.2003, while effecting personal search of accused Harwinder Singh in FIR No. 27 dated 7.2.2003. The identification of such articles was carried out by the police of Police Station Jagraon on 18.2.2003 in the presence of Tehsildar Jagraon. Such identification report of the articles is Exhibit D.12. The said report, inter-alia, is to the effect that Harjinder Singh admitted that these articles pertain to his son deceased Baghel Singh. Ramesh Kumar, the jeweler of Mohalla Shergarh, Kapurthala, admitted that karra and ring are made at his shop and purchased by Harjinder Singh. Harjinder Singh accused is one of the attesting witness of such recovery process.

During the investigation in the aforesaid FIR lodged by the police of Police Station Jagraon, the involvement of the appellants in the death of Baghel Singh came to surface. The SHO, Police Station, Mehna, moved an application before the Judicial Magistrate, Ludhiana, for arrest and production of the appellants before the learned Illaqa Magistrate, for the purposes of investigation in the FIR in question. The Court permitted the accused to be arrested in FIR in question on 14.2.2003 and to be produced before the Illaqa Magistrate on 15.2.2003 at 10 a.m. In pursuance of such permission granted, the assailants were arrested and further investigations made. The samples of finger prints and foot prints of the assailants were taken by the police of Police Station Mehna. Exhibits P-34, P-35 and P-36, are the recovery memos of shoes worn by accused Harjinder Singh, Satwant Singh and Manjit Singh respectively dated 14.2.2003. The fingerprints of right and left hands of Harwinder Singh @ Binder; Satwant Singh were obtained vide Exhibits P-57 & P-58 and Manjit Singh vide Exhibits P.59 & P.60. The said samples were compared by the Finger Print Bureau, Phillaur on 28.5.2003. Exhibit P.61 is the report of the Finger Prints Bureau, Phillaur.

On 15.2.2003, Satwant Singh @ Satta, one of the assailants made a disclosure statement (Exhibit P.19) that 'Dah' used for cutting the head of deceased Baghel Singh was kept concealed by him near Dangia bridge underneath the banyan tree, regarding which he only was knowing and could get the same recovered. Exhibit P.20 is the disclosure statement of Harwinder Singh which is to the effect that the knife with which he had given blows on abdomen of Baghel Singh was kept concealed under the bushes near Dangia bridge and he could get the same recovered. On the basis of such disclosure statements i.e. Exs.P-19 and P-20, Dah and knife were recovered vide recovery memos Exs.P-22 and P-24 respectively. The sketches of Dah and knife are Exs.P-21 and P-23 respectively. Such items of the case property were deposited with Moharir Head Constable, Police Station Mehna.

Accused Manjit Singh and Harwinder Singh stand convicted for possessing arms arising out of FIR Nos. 28 and 29 lodged at PS Jagraon vide order dated 14.7.2005 (Ex C-4) and 20.10.2008 (Ex C-6) respectively passed by the learned Additional Sessions Judge, Ludhiana. All other accused, except Harwinder Singh alias Binder son of Ajit Singh were acquitted of the charge for the offences under Sections 399 and 402 IPC, vide judgment dated 14.7.2005. Harwinder Singh was a proclaimed offender at that time. He was tried later after he was apprehended. The learned trial Court acquitted him of the charges for the offences under Sections 399 and 402 IPC vide judgment dated 20.10.2008 (Ex C-2) passed by the learned Additional Sessions Judge, Ludhiana.

Exhibit P.11 is the statement of one Jarnail Singh recorded by SI Ajaypal Singh on 7.2.2003 under Section 161 of the Code. The said statement is in respect of extra judicial confession of Jugraj Singh @ Guggi. Jarnail Singh in his statement stated that on 6.2.2003 Jugraj Singh @ Guggi came to his house and told him that police is in search of him. Jugraj Singh has told him (Jarnail Singh) that on 21.1.2003 Manjit Singh @ Sodhi, Harjinder Singh @ Binder and Satwant Singh @ Satta came to him on Esteem Car No.DL-9C- 4915 of white colour at about 7 O'clock at Dana Mandi, Ajitwal, where he was standing. They informed him that they have grabbed the car in the area of Mullapur Dakha and it is to be parked with him. In the night, all the four of them went in the car to bus-stand Ajitwal, where they met Manandeep Singh, student of Polytechnic College, Ajitwal, who is classmate of Baghel Singh. They enquired about Baghel Singh and other boys, who reside on rent in his rooms. Manandeep Singh told that he has come alone and Baghel Singh and other boys residing with him

have not come. After enquiry from Manandeep Singh, all four went to his house and parked the car in his house and all of them went to the room of Baghel Singh and his room partner. On reaching there, all of them broke the lock of room of Baghel Singh and started drinking liquor. At about 9.30 PM, Baghel Singh came to his room and started abusing all of them that why they have entered into his room. Baghel Singh closed earl (kunda) from outside. Thereafter, the door was broken by all of them in ten minutes. Baghel Singh was standing having dang in his hand at that time. Baghel Singh attacked Harwinder Singh with his dang. Harwinder Singh made blow of his dang on head of Baghel Singh and Satwant Singh made 'dat' blow on hand of Baghel Singh. Baghel Singh fell down. He (Jugraj Singh @ Guggi) and Satwant Singh became nervous. Then he and Manjit Singh @ Sodhi brought Esteem Car from his house and put Baghel Singh in the car. He went to his house. Manjit Singh, Harwinder Singh and Satwant Singh went in the car. It was on 30.1.2003, he came to know that Baghel Singh has been killed. He was out of the house to evade the arrest and sought the intervention of Jarnail Singh. In pursuance of such disclosure statement, accused Jugraj Singh was arrested on 7.2.2003. Exhibit P.18 is the recovery memo of sandals of accused Jugraj Singh, which were taken into possession after converting the same into parcels on 7.2.2003. Finger prints of right and left hands of Jugraj Singh @ Guggi were obtained vide Exhibits P.53 & P.54 on 10.2.2003.

After completion of investigation, report under Section 173 of the Code was submitted by the police, to prove the charges of culpable homicide amounting to murder against the assailants and Jugraj Singh relying upon the evidence of last seen in the shape of evidence of Bhajan Singh and Surjit Singh; finger prints found on the glass tumblers; liquor bottle; foot prints; human blood on the cement scratched from the room of Baghel Singh and the recovery of karra, gold plated silver ring and watch 'Pulsar' recovered from the assailants by the Police of Police Station Jagraon said to be that of deceased Baghel Singh. Charanjit Kaur, the mother of the deceased was cited as a witness to prove the identification of the dead body, whereas, Harjinder Singh, now accused, was cited as witness of recovery of articles. The charge was framed for an offence under Sections 302, 201 and 365 IPC against assailants and Jugraj Singh on 3.6.2003.

In order to prove the guilt against the accused, the prosecution initially examined Jarnail Singh, the person before whom extra judicial confession was made by Jugraj Singh as PW-2; Manandeep Singh, the author of the FIR as PW-6; Bhajan Singh as PW-9, whereas Harjinder Singh, father of deceased Baghel Singh entered into witness-box as PW-8. His cross-examination was completed. Hirdejit Singh, Tehsildar, Ropar was examined as PW-9, who carried out the identification of gold ornaments recovered from the assailants by P.S.Jagraon. The witnesses PW 2 Jarnail Singh, PW 6-Manandeep Singh and PW 9-Bhajan Singh, had turned hostile. Harjinder Singh, accused-appellant moved an application (Exhibit P.11) on 25.3.2004 to the effect that his wife Charanjit Kaur should not be examined as a witness in the case as she is schizophrenic patient. Charanjit Kaur filed reply to the aforesaid application, which is Exhibit P.13, and asserted that she is fit and that she can be medically examined by any Doctor. She further stated that she suspects that her husband Harjinder Singh, is the murderer of her son. The said application remained pending. Charanjit Kaur mother of deceased Baghel Singh entered into witness box as PW3 on 6.9.2004. After her long examination in chief was recorded, but before she could be cross-examined, the Public Prosecutor sought time to move an application under Section 319 of the Code. On such application, the learned trial Court passed an order on 6.10.2004 summoning Harjinder Singh,

father of deceased Baghel Singh and Sumandeep Kaur, the alleged second wife of Harjinder Singh, as the additional accused. The charge was framed against Harjinder Singh and Sumandeep Kaur under Sections 302, 365 IPC on 19.3.2005. It was on 30.8.2005, the charge was amended and the offence under Sections 302 read with 120-B, 201 read with 120-B and 365 read with 120 IPC, was included against all the accused.

In the evidence recorded in the presence of all the accused including Harjinder Singh and Sumandeep Kaur, Manandeep Singh was examined as PW1. He did not recognize Jugraj Singh @ Guggi as the accused present in the Court. But he narrated the story of Baghel Singh having dinner with him; coming of Baghel Singh to his room and the fact that 3/4 persons were sitting in the room of Baghel Singh taking liquor as also the fact that he went to his landlord and knocked the door, but none came from the inside. He also deposed that the main door of the room of Baghel Singh was locked from inside and he heard sound of fighting from inside. He deposed that none came from the room, so long he was present at the gate of premises of Baghel Singh. He did state that application Exhibit PW1 bears his signatures, but the same was not drafted by him as he was gripped with fear due to the happening of night. He stated that he has not seen any person either in village Ajitwal or in front of the room of Baghel Singh during that night in suspicious circumstances. The Public Prosecutor was allowed to cross-examine the aforesaid witness. He was confronted with his statement under Section 161 of the Code (Ex P-2) wherein it is recorded that a Sikh and another Hindu gentleman come to him in an esteem car bearing registration No. DL 9C 4915 to enquire about Baghel Singh. He also denied that the aforesaid persons enquired whether the room mate of Baghel Singh was present with him in the room or not. He did not admit that dried blood from the walls of the room of Baghel Singh was recovered vide recovery memo Exhibit P.3 on which he appended his signatures. In respect of Court question that "you are time and again moving handkerchief on your face, are you feeling hot or some fear?", the witness replied that he was feeling fear. He denied the suggestion that he is afraid of Jugraj and other accused, therefore, he had not named Jugraj and other accused.

PW5 is Jarnail Singh before whom Jugraj Singh has allegedly made extra judicial confession. He has not supported the prosecution case and was declared hostile. Since Jugraj Singh has been acquitted by the learned trial Court, his statement is not of much relevance at this stage.

PW9 is Bhajan Singh, resident of village Auja Banwali, Tehsil Kapurthala. He has admitted himself to be friend of Harjinder Singh accused for the last 10 years. Surjit Singh, another cited prosecution witness, though not examined, hails from Arianwali, Tehsil and District Kapurthala. Bhajan Singh stated that he is fast friend of Harjinder Singh and that Surjit Singh is more close to Harjinder Singh than Harjinder Singh is to him. He has deposed that he and Surjit Singh had gone to Jagraon Sugar Mill. They reached there at 5 p.m. on 21.1.2003. Surjit Singh accompanied him as he had some work at the Sugar Mill. He deposed that when they were going back to the village, on Ludhiana Ferozepur Road, they saw Jugraj and other person were carrying Baghel Singh in a car. The other persons in the car were Manjit Singh, Satwant Singh and Harwinder Singh - assailants. He and Surjit Singh asked Jugraj Singh and his other companions as to where they were carrying Baghel Singh. They replied that he was ill and they were taking him to some Doctor for medical treatment. They went to meet the friend of Surjit Singh, but he was not found. He came to know that Baghel Singh was

murdered 6/7days later. It was 22.1.2003, he came to know that Baghel Singh was missing. He knew Jugraj Singh as he visited Baghel Singh in a rented room once or twice. It was at 6.15 p.m., he saw Baghel Singh being taken away by Jugraj and others in an esteem car. In cross-examination, he has admitted that he has not given such information either to Harjinder Singh; or to the grandparents or mother of Baghel Singh. He has admitted that he has not informed the Police on 22.1.2003 about seeing Baghel Singh in the company of Jugraj and others in the esteem car. In cross- examination, he stated that the sugar mill visited, is at a distance of 70/75 kilometres from his village and that no slip was issued to them from the Sugar mill Jagraon, as they were informed that the sugarcane is purchased from local farmers and that they would see whether sugarcane can be purchased from outside after purchase of sugarcane form the farmers of the area.

PW11-Dr. A.S. Thind, Additional Professor, Department of Forensic Medicine, GGS, Medical College & Hospital, Faridkot, has conducted the post mortem examination on the dead body of an unknown male on 28.1.2003. The dead body was identified by one Gurdeep Singh son of Sarwan Singh and Ruldi Singh son of Chaggar Singh. The dead body was 5 feet 5 inches without head and neck. The Doctor found nine incised wounds and the cause of death was shock and haemorrhage as a result of the injuries. All the injuries were found to be ante-mortem in nature and were sufficient to cause death in the ordinary course. The probable time between injuries and death was found to be immediate and between death and post mortem about 3 to 5 days. The post mortem report is Exhibit P.1.

Exhibit P.31 is the report of the Forensic Science Laboratory, Punjab, Chandigarh, examining cement alleged to be stained with blood and the sample cement. It was reported that the exhibit contained in Parcel-A is stained with human blood, but the material is insufficient for the blood group examination. No demonstrable blood was deducted on the exhibit contained in Parcel- B .i.e. sample cement. The samples were received in the office of Forensic Science Laboratory, Chandigarh on 31.1.2003. Exhibit P.32 is the report of result of examination of Parcel-A containing human blood stained sample of cement (mortar) and Parcel-B containing control sample of cement (mortar). It was found that the blood stained sample of cement (mortar) contained in Parcel-A is similar to the control sample of cement (mortar) contained in Parcel-B. Exhibit P.33 is the report of Forensic Science Laboratory, Punjab, Chandigarh, in respect of eight parcels of articles received on 7.2.2003 and 4.3.2003. The samples are the moulds of footwear. It was found that the impression of right footwear in Parcel CI could be from the right fellow AR of the pair of test footwears contained in Parcel-A of suspect Harwinder Singh. The impression of left footwear on crime moulds C.2 and C.3 contained in Parcels-C2 and C3 could be from the left fellow BL of the pair of test footwears contained in parcel-B of suspect Manjeet Singh. The impression of left footwear on crime mould C.4 contained in Parcel-C4, could be from the left fellow CL of the pair of test footwear contained in Parcel-C of suspect Satwant Singh.

PW3-Charanjit Kaur has deposed that her marriage with Harjinder Singh was solemnized in the year 1981 when Harjinder Singh was an employee of the Central Reserve Police Force. From the said wedlock, three children were born. Eldest one was Baghel Singh, younger to him is a son and the youngest is the daughter. The children younger to Baghel Singh are the students and residing with her. She is bearing all the expenses including that of Baghel Singh. Her husband was getting good

salary and was financially sound but was keeping her financially tight. Whenever anyone used to go to visit him, he would serve liquor and meat. Harjinder Singh was spending money, whereas she was made to live on bare food. Same treatment was given to her children when they were living with her husband. Her parents were helping her with small amounts of money. On account of scarcity of money for her needs and the needs of her children, she started doing job. Firstly, she did job at Jalandhar, when her husband was posted at Jalandhar and then she did at Gurdaspur. She did job at Nagaland, when her husband was posted at Nagaland. When posted at Nagaland, he was doing womanizing and asking her to bring girls from school for his enjoyment, although she never brought any girl from the school. She also deposed that her husband performed second marriage with a lady from Delhi, named, Sumandeep Kaur. During her visit to Kapurthala, the house of her husband, she found said Sumandeep Kaur living with him. She has categorically deposed that her husband and Sumandeep Kaur were surely living as husband and wife. She has also deposed that in Delhi at Kothi No. 2, Mata Sundri Road, she was in the servant quarters and waiting, whereas Sumandeep Kaur and her husband were inside that Kothi. When she questioned Sumandeep Kaur, she replied that she has performed marriage with Harjinder Singh with the consent of both the families. At that time her mother-in-law came and asked her to leave. She has also deposed that her husband filed a divorce petition, which is pending before the High Court. She has appeared before High Court for reconciliation. Baghel Singh was with her. Before this Court, he (Harjinder Singh) identified her son Baghel Singh as her brother. The entire expenses of study of Baghel Singh at the Polytechnic at Ajitwal, were borne by her. Baghel Singh was demanding expenses from her husband and was writing letters. Once, he had visited her husband to claim expenses. When he did not get any expenses from his father, he wrote letters to his department. Her husband felt irritated on account of writing of such letters by Baghel Singh. When her husband enquired from her son whether the letters have been written by him and on a positive reply, her husband gave threats to him that it would cost him dear. She has deposed that Baghel Singh once visited his grand parent's house at Kapurthala in connection with the execution of the Will, as he was called for that purpose. On 7.1.2003, her husband visited her house at Nabha and advised the children that they should go to his parents whenever they would call. She deposed that she has written to the Department of her husband regarding the second marriage of her husband. Her father-in-law died on 16.1.2003 but he did not execute any Will in favour of her son. Her son stayed only for one day when he was so called for execution of the Will by her father-in-law. After the death of her father-in-law, Baghel Singh went to Kapurthala for one day, but he was made to stay for 4/5 days. At the time of death of her father-in-law, her husband did not come as he was posted in Assam. Baghel Singh left Kapurthala at about 6 p.m. Her mother-in-law advised her son to keep on telephoning her while he was on way. Baghel Singh telephoned her mother-in-law from Ludhiana and also from Ajitwal. It takes about 3-1/2 /4 hours for someone to go to Ajitwal from Kapurthala by bus. Her son has gone all alone from Kapurthala to Ajitwal. Her son telephoned that he had taken meals. Sumandeep Kaur had two brothers and they had criminal record. One had suffered jail for 8/9 years. Her husband and Sumandeep Kaur did not like Baghel Singh and he did also not like them. Her husband and Sumandeep Kaur were feeling fear from her sons, as they were growing young and Baghel Singh was writing letters to the Department of her husband. He has insulted her husband before the High Court by saying that his father was of such a type that he could not identify his son.

She has deposed that on 22.1.2003, she received a telephone that whereabouts of Baghel Singh are not known. She came to Ajitwal in response to such telephonic call. Her husband was present at Ajitwal. Firstly, she went to the College, where her son was studying, but no clue was found. Then she went to the Police Station. She asked the Police to lodge an FIR, but she was informed that the FIR stands already lodged. Her statement was also not recorded by the police. She deposed that she resided sometime with her son Baghel Singh when he was studying at Jagraon. She categorically deposed that her husband never visited her son when he was studying at Ajitwal. Her husband did not know who was landlord of Baghel Singh. On 29.1.2003, she received a telephone from the police about the recovery of the dead body. The dead body was lying at Guru Gobind Singh College & Hospital, Faridkot. It was without head and absolutely naked. She recognized the dead body of her son since she has brought up her son for 20 years. She was able to recognize the dead body from hands, nails and socks. She narrated the entire story to the police, but they did not record her statement. She deposed that her husband remained posted in Punjab Police and had hushed up the entire case with his influence on the police. It was on account of this fact that her statement was not recorded by the police. She identified her blood donation card as Exhibit P.5; of Baghel Singh as Exhibit P.6 and that of her husband as Exhibit P.7. She has produced Photostat copies of the letters written by her son Baghel Singh. Exhibit P.9 is the Photostat copy of the letter dated 8.1.2002 whereas Exhibit P.10 is photocopy of the letter dated 20.6.2002. Such letters were objected to by the defence counsel on the ground of mode of proof. It is recorded by the Court that the original of Exhibits P.9 and P.10 have been brought by the witnesses, which have been seen and returned to the witness. The Court recorded that Exhibits P.9 and P.10, are proved when their originals have been presented. Therefore, there is no substance in the objection of the defence counsel. She further deposed that her whole suspicion behind the murder of her son is on her husband. She also suspected Jugraj Singh, who did not come to when the lock was broken and he also did not come when her son had called him. She also suspected Sumandeep Kaur behind the murder of Baghel Singh. She deposed that she was not satisfied with the outcome of the investigation.

She deposed that the prosecution witness Bhajan Singh and Surjit Singh were cited at the behest of her husband Harjinder Singh. One of them is close friend of her husband and another is God brother of Sumandeep Kaur. They were cited as prosecution witnesses to get a favourable statement during the trial. In response to the Court question as to what she would like to say about the involvement of accused Manjit Singh, Harwinder Singh and Satwant Singh @ Satta, the answer is that they might be the hired killers. She admitted that there is no mention about her doing job at Jalandhar and Gurdaspur in her previous statement dated 6.9.2004 and that she has not deposed regarding her husband calling upon her to bring girls from the school when she was doing job in Nagaland. She has also not deposed that any threat was given to her son Baghel Singh by her husband Harjinder Singh, when Baghel Singh wrote letters to the Department of her husband. She deposed that when in the year 1981, her marriage was solemnized with Harjinder Singh, he was posted in Srinagar. Baghel Singh got birth at her parental house at Nabha. Harjinder Singh remained posted in Punjab Police in the year 1992 for 3-4 months as SP (Operation), Gurdaspur. In the year 1991, her husband was posted at Jalandhar. She denied that suggestion that Harjinder Singh was not having any potential to influence the Punjab Police because of short stint in the Punjab Police. She admitted that Harjinder Singh got her admitted in the mental hospital at Amritsar, for a short time, due to his liaison with Doctors. Similarly, due to liaison with the doctors

of J.L.N. Medical College & Hospital, Ajmer, she was admitted in the hospital and her signatures were obtained by prevailing upon her. Electric shocks were given to her in that hospital. She denied that she has taken treatment for 8 months. She volunteered that she has not taken even one tablet. She denied the suggestion that she was given medical treatment for schizophrenia in a Hospital at Nagaland. In Delhi her husband has taken her to the house of someone and an injunction was given to her and then something was happening to her for number of days. She denied the suggestion that she was medically checked up at the Institute of Human Behaviour and Allied Sciences G.T. Road, Jhilmil, Delhi and was declared as a patient of schizophrenia. She admitted that the Court at Kohima passed a decree of judicial separation, but that decree was later on set aside. Divorce case started in the year 1994, but even during the pendency of the said case, she was staying with her husband. She was pursuing him to withdraw the case upto 1998.

She started living at Nabha since Sumandeep Kaur joined the company of her husband. She observed Sumandeep Kaur for the first time in the company of her husband in the year 1998. She denied the suggestion that Baghel Singh did not write any letter to the departments of Harjinder Singh. In the cross-examination by counsel for Jugraj Singh, she could not tell the names of students, who were room mates of Baghel Singh. It was at about 6 p.m., she went to the College at Ajitwal and at about 7.00 p.m., she went to Police Station Mehna. She stated that she did not get any written complaint lodged against the Investigating Officer or any police officer, who did not pay heed to her. She was with Baghel Singh, when he got admission in Polytechnic College at Ajitwal. She denied the suggestion that Sumandeep Kaur was kept as governess for the parents of her husband. She did not remember whether any case for maintenance was filed by her, but a sum of Rs.1500/- per month was paid in Court by her husband. She denied the suggestion that her husband has been continually paying maintenance to her and her children and also paying expenses for the study of her children and also paying visit to her children at Nabha, after 1998. She was getting some information from her in laws through telephone but sometimes, the information was correct and sometimes incorrect. She denied the suggestion that she did not visit Police Station Mehna on 22.1.2003 and that there is no hand of Harjinder Singh and Sumandeep Singh in the murder of her son. She denied the suggestion that she has a motive to name her husband as accused on account of distorted relations with her husband. In the cross-examination on behalf of the counsel for the assailants, she has deposed that so long Baghel Singh was studying at Ajitwal, neither her husband gave any gift to him nor paid any money to him.

After the prosecution led other witnesses, the statements of accused under Section 313 were recorded. However on 1.12.2006, the Court summoned Shri Narsing Dass, the former Principal of Lala Lajpat Rai Memorial Polytechnic Ajitwal and SI Gurmit Singh, Police Station Sadar Jagraon as court witnesses. Such witnesses were examined on 17.1.2007.

Shri Nar Singh Dass, who was working as Principal of Lal Lajpat Rai Memorial Polytechnic, at the time of the occurrence deposed as CW1 that application (Exhibit P.1), submitted by Manandeep Singh was forwarded by him to SHO, Police Station Mehna. In response to the question whether he has informed other relatives i.e. mother, father, brother or sister of Baghel Singh, regarding missing of Baghel Singh, he answered that he has sent two class fellows of Baghel Singh to give such information either to parents or to guardian of Baghel Singh. In response to the next question, he

has responded that he has not given any direct information to any of the parents or guardian of Baghel Singh and he could not tell the name of the students, through whom he has sent the message. In response to another question as to whether he has the telephone number or residential address of any of the parents of Baghel Singh, the witness has answered that he did not have any telephone number of any of the parents, but he has residential address of Baghel Singh, which was mentioned in the admission form. Except the said address, he does not have any other address of Baghel Singh. In response to another question, he has stated that Mohinder Kaur has signed as the Guardian of Baghel Singh. In response to another question, he has deposed that in fact, none of the parents of Baghel Singh tried to contact him after he forwarded the report of his missing on 22.1.2003. In the cross-examination conducted by the counsel of the accused Harjinder Singh and Sumandeep Kaur, the witness answered that he does not remember if any of the parents of Baghel Singh met him after completion of examination of 5th semester. He denied that Mohinder Kaur, signatory on the admission form is maternal grand mother of Baghel Singh. He denied the suggestion that he called her about the missing of Baghel Singh. At that stage, Harjinder Singh was also allowed to cross-examine the witness himself. The suggestion as put by the accused and recorded reads as under:-

"It is wrong to suggest that I had replied the telephonic call made by you to know the whereabouts of your son. I have no knowledge that your mother-in-law has given information to you through telephone."

At this stage, it may be mentioned that accused Harjinder Singh has appeared as PW8 on 25.3.2004 prior to his summoning on an application filed by the Public Prosecutor under Section 319 of the Code. While appearing as PW8, Harjinder Singh on oath has deposed that he came to know about the abduction of his son Baghel Singh through the telephonic message given by the Principal of the College and went to room of Baghel Singh with police at 3.30 PM. He has also deposed that when Baghel Singh left his house, he was wearing gold karra, one sliver ring bearing golden polish and one wrist watch on his person and that on 18.2.2003 he was called in Police Station Jagraon and he identified that aforesaid articles belonging to his son. Such articles were also identified by Ramesh Kumar, jeweler, who had prepared the same. In the cross-examination by the counsel for Jugraj Singh accused, he has admitted that his wife has given an application before the Human Rights Commission, regarding murder of Baghel Singh against him and some other and that he came to know about the abduction of his son at about 11 a.m. on 22.1.2003. In the cross-examination conducted by the other accused, Harjinder Singh has stated that on 7.1.2003, he met his son Baghel Singh at Nabha.

SI Gurmeet Singh, SHO, Police Station Sadar Jagraon, examined as Court witness No. 2, has brought the police file of FIR No. 27 dated 7.2.2003, Police Station Jagraon. In respect of Court question as to whether the record of police file of Police Station Jagraon contains any noting or document in respect of intimation given to Police Station Mehna or to complainant or to any of the witness, regarding recovery of gold karra, finger ring and wrist watch recovered from accused Harwinder Singh, the witness has deposed that there is no such information. In respect of another question, he has answered that there is no document or entry in the case diary for giving intimation to any of the police officer of Police Station Mehna regarding recovery. He stated that there is a

possibility that the intimation might have been given through wireless message. In response to further question he said that he can produce the record of message being sent through wireless. His further cross-examination was deferred. When the witness was recalled for further examination on 15.2.2007, he has answered that there is no record of any wireless message to any Police Officer of Police Station Mehna regarding recovery of articles in FIR No. 27 of 2003, Police Station Jagraon. After checking Roznamcha entries for the period 17.2.2003 to 18.2.2003, he has deposed that there is no mention in respect of intimation being sent to the Police of Police Station Mehna or Investigating Officer of FIR No. 3 dated 22.1.2003 or the witnesses of that case or to the Sub Divisional Magistrate.

After such evidence, the supplementary statement of the accused-Harjinder Singh was recorded on 19.4.2007. An additional statement under Section 313 of the Code was recorded on 10.10.2007. The additional statements under Section 313 of the Code of Jugraj Singh, Sumandeep Kaur, Manjit Singh, Harwinder Singh and Satwant Singh, were recorded on 10.10.2007.

Manjit Singh-accused in his statement under section 313 recorded on 1.5.2006 and 2.5.2006 denied the prosecution case containing incriminating circumstances against him. In additional statement under Section 313 recorded on 10.10.2007, after the Court witnesses were examined, he admitted as correct the production of original admission file of Baghel Singh (Exhibit C.1). He has also admitted the process of taking his finger prints before the Executing Magistrate, Moga, as correct. However, it was answered that the preserved finger prints are manipulated. Similarly, finger prints on the material objects developed into photographs Exhibits P.65 to P.78, were said to be manipulated ones. Harwinder Singh and Satwant Singh accused denied the entire incriminating circumstances put by the prosecution in their statement under Section 313 of the Code. However, the said accused in their additional statement under Section 313 of the Code recorded on 10.10.2007, admitted as correct the production of original file of admission of Baghel Singh as well as the process of taking their finger prints, but asserted that the preserved finger prints are manipulated ones.

Accused Harjinder Singh in his statement under Section 313 of the Code recorded on 17.4.2006 and 19.4.2006 admitted that his son was student of Lala Lajpat Rai Memorial Polytechnic College, Ajitwal and was a class mate of Manandeep Singh and was staying in a rented house along with Ranjit Singh and Jaspreet Singh. He admitted that the statement of Manandeep Singh as correct and that he went to call the landlord of Baghel Singh but none came out to answer the door from inside. In response to question No. 9, he admitted that he was physically present at the spot on 22.1.2003 along with local police. In response to question No. 16, the accused admitted that on 22.1.2003, during the spot inquiry, he was present and was called at the site by the police and he has seen the blood stains on the wall as also on the ground. In response to question No. 18 that SI-Ajay Pal Singh prepared the site plan of the place of occurrence, the answer was that he was called by the local Police, Police Station Mehna on 22.1.2003 and in his presence, SHO, Police Station, Mehna prepared the map of the place of occurrence. In response to question No. 21, it was stated that he served as SP (Operation), Gurdaspur during 1990-91 for a period of about 8 months. In response to question No. 26, he admitted the recording of statement of Manandeep Singh under Section 161 of the Code disclosing the names of Jugraj Singh, Manjit Singh and two other persons, as accused. He also admitted the recording of statement of Bhajan Singh and Surjit Singh by SI-Ajay Pal Singh on

26.1.2003 in response to question No.27. Question No. 28 is that Bhajan Singh and Surjit Singh are his fast friends and knew his son Baghel Singh. The answer is that Bhajan Singh is his friend and knew him and all his family members and used to occasionally visit his son, studying at Ajitwal. He also admitted that Surjit Singh is known to him. In respect of the evidence led by Bhajan Singh, he admitted the same to be correct. Similarly, he has admitted the process of identification of the dead body of Baghel Singh by the Police of Police Station Kotkapura. Question No. 46 was that his wife Charanjit Kaur was bearing the expenses of all the children, including that of Baghel Singh. The answer is that earlier his wife and children were staying with him but due to his posting in remote areas of Nagaland, Assam and Jammu & Kashmir, she (Charanjit Kaur) was left with her parents as per her desire. In respect of the question that he was keeping Charanjit Kaur financially tight, the answer was that he was sending money to her off and on and paying through Court, as per the orders of the Court. In respect of question that Charanjit Kaur and her children were made to live on bare food, the answer is that she never complained about his conduct to his department. He denied performing marriage with Sumandeep Kaur. It was stated that Charanjit Kaur being schizophrenic patient is leveling false allegation to impress upon him to withdraw the divorce case, which is pending in the Punjab and Haryana High Court. Sumandeep Kaur was kept as governess by his parents being old and ailing. In response to another question, the answer is that his parents came to visit him at Kothi No.2, Mata Sundri Road, Delhi along with their governess. His relations with Charanjit Kaur got subverted since 4.8.1994 when judicial separation was granted by the Court at Kohima. He denied that he failed to identify his son in reconciliation proceedings in the High Court. In fact, he stated that after leaving the High Court, he, Charanjit Kaur and their son Baghel Singh had their lunch at bus stand Chandigarh and that he used to pay money for the study of his son Baghel Singh as and when required. He denied the question that Baghel Singh has written any letter to his department against him as he had very good relations with him.

Question No. 61 was that Baghel Singh was called at Kapurthala for execution of the Will by father-in-law of Charanjit Kaur, but he did not execute any Will, though Baghel Singh stayed there for one day. Harjinder Singh admitted in his answer that Baghel Singh was called by his parents to execute the Will of the property not inherited by him as well as by his father but for the property which was on the name of his mother. He stated that the Will has now been executed by his mother in favour of his two children excluding him. In response to next question, he has admitted that he visited house of Charanjit Kaur at Nabha on 7.1.2003. Question No. 64 is that Baghel Singh left Kapurthala at about 6 p.m. for Ajitwal on 21.1.2003 and mother-in-law of Charanjit Kaur advised Baghel Singh to keep telephoning her while Baghel Singh was on way to Ajitwal and Baghel Singh telephoned mother-in-law of Charanjit Kaur, while he was on way to Ajitwal and it takes about 3-1/2 to 4 hours to reach Ajitwal. He has stated the same to be wrong and asserted that his mother and all his relations persuaded Baghel Singh not to leave Kapurthala in the evening and they also gave handsome money out of affection. Baghel Singh insisted to go to Ajitwal so that he could join his classes next day. It is also admitted by Harjinder Singh in response to another question that Baghel Singh left Kapurthala, before he arrived at Kapurthala on 21.1.2003. In response to Question No. 68 that he never visited his son Baghel Singh when he was studying at Ajitwal and that Charanjit Kaur received a telephone that whereabouts of Baghel Singh were not known and in response to such telephonic message, Charanjit Kaur came to Ajitwal and she observed that he was already present at Ajitwal. Harjinder Singh admitted that he met Charanjit Kaur at Ajitwal and that he reached Ajitwal

after getting information on telephone from mother of Charanjit Kaur and that she gave him telephone number of Lala Lajpat Rai Memorial Polytechnic College, Ajitwal and informed him about the non-availability and kidnapping of Baghel Singh. In supplementary statement of Harjinder Singh accused under section 313 of Code recorded on 28.2.2007, he stated that he was informed by his in-laws regarding missing of his son, and then he went to the institute along with police, where Charanjit Kaur was also present. He could not identify the Principal of the Institute at that time. In response to a question that neither he nor the Police of Police Station Mehna was sent intimation regarding recovery of gold ornaments from his co-accused, appellant-Harjinder Singh answered that he was informed by the Police of Police Station, Mehna about the recovery of articles from the possession of accused Manjit Singh and Harwinder Singh by the Police of Police Station Jagraon. Additional statement of Harjinder Singh was recorded under Section 313 of the Code on 10.10.2007, wherein accused Harjinder Singh denied the questions put, except admitting the original admission file of Baghel Singh by the principal of the Lal Lajpat Rai Memorial Polytechnic College.

In defence, DW1-Malkiat Singh, Senior Assistant, Mental Hospital, Amritsar, was examined. He has brought the record of Charanjit Kaur, admitted as patient on 20.8.1990 and discharged on 23.8.1990. DW2 is Dr. A.R. Garg, former Professor of Psychiatry, Medical College, Ajmer, who has been examined in respect of the certificate of mental health of Charanjit Kaur, issued on 9.4.1991. DW3-Ramesh Chand Sharma was summoned to produce the record of the Institute of Human Behaviour and Allied Sciences Delhi, but such record was not produced as it was produced in the Court of Additional District Judge, Patiala on 7.2.1000. DW4 is Harchand Singh from the office of SSP, Jagraon, in respect of the case property recovered in pursuance of FIR Nos. 27 and 28 dated 7.2.2003, Police Station Jagraon. DW5 is ASI Surajpal Singh, who was posted at Police Station Mehna on 18.2.2003 and was deputed for the identification of the case property by the Police of Police Station Sadar Jagraon.

After the evidence were led by the parties, the learned trial Court acquitted Sumandeep Kaur and Jugraj Singh of the charges, but found charge of causing death of Baghel Singh by the appellants proved and sentenced them to death sentence subject to confirmation by this Court.

While hearing the murder reference and the appeals, it was found on 28.1.2010 that additional evidence is required to be examined in respect of the proof of letters Exhibit P.9 and P.10 and also the status of cases arising out of FIR Nos. 27, 28 and 29, Police Station Sadar, Jagraon. Consequently, we summoned an official from the office of CRPF with the record containing originals of letters Exhibits P.9 and P.10 and also record from the police station, Jagraon in respect of the aforesaid case. The order dated 28.1.2010 reads as under:-

"We have heard arguments at some length.

One of the arguments raised by Shri Cheema, is that documents Exhibits P.9 and P.10, produced by the prosecution purportedly written by Baghel Singh, have not been proved on record, in accordance with law. The said documents are the letters allegedly written by Baghel Singh to the Officers of Central Reserve Police Force, in respect of negligence of Harjinder Singh- appellant to maintain his family. It has also

come on record that Gold Karra, Silver Ring gold plated, Wrist Watch (mark 'pulsar'), purportedly worn by Baghel Singh, were recovered by the police of Police Station Sadar, Jagraon at the time of arrest of appellant Nos. 1 to 3 in Criminal Appeal No.7-DB of 2008, in a different case arising out of FIR No. 27 for the offences under Sections 399 and 407 IPC and Section 28 of the Arms Act, 1959.

We find that proof of document Exhibits P.9 and P.10 may be relevant for arriving at the just decision of the case as it is the case of PW3-Charanjit Kaur that her husband Harjinder Singh was neglecting the family in maintenance and also deprived his family of sustenance and since Baghel Singh had written these letters to the superior officers of employer of his father, therefore, Harjinder Singh was bearing a grudge against his son Baghel Singh, deceased.

Similarly, the FIRs in which appellant Nos. 1 to 3 in Criminal Appeal No. 7-DB of 2008 were arrested and certain articles were allegedly recovered from the person of Baghel Singh, and the result thereon may be relevant to reach the just decision of the case.

In view of the said fact, an official from the office of Central Reserve Police Force, CGO Complex, Lodhi Road, New Delhi and an official from the office of Senior Superintendent of Police, Ludhiana, are summoned to produce the record mentioned above. The photo copies of Exhibits P.9 and P.10 be enclosed with the summons for identification of the relevant record. The summons be issued today itself.

Shri Anmol Rattan Sidhu, learned Assistant Solicitor General of India and Shri Harpreet Singh Brar, learned Additional AG, Punjab, are also requested to assist the Court in producing the relevant record from the office of CRPF and that of SSP, Ludhiana, respectively.

List on 11.2.2010 for evidence and further proceedings."

In pursuance of the said order, Shri Rajib Sarkar, Sub Inspector, CRPF, has produced the record and has been examined as CW3. He has produced the original of the document Exhibit P.10, which is marked as Exhibit CW3/1. He also produced complaint dated 14.3.2000 by mother-in-law of Harjinder Singh (Exhibit CW3/2). Exhibit CW3/3 is the reply of Harjinder Singh. A report dated 17.8.2002 of the preliminary inquiry was produced as Exhibit CW3/4. The regular departmental inquiry was also conducted. The order passed by the competent authority dated 29th December 2009 was produced as Exhibit CW3/5. Thereafter, the cross-examination was deferred to produce the file pertaining to the regular departmental inquiry. On 19.2.2010, the original file of the regular departmental proceedings was produced. The witness has stated that letter Exhibit CW3/1 was not sent to Harjinder Singh but factum of such letter is mentioned in Annexure P.II- Ex CW3/D/1 i.e. the statement of imputation which is part of the charge sheet. A reply dated 29.11.2001 submitted by Harjinder Singh is Exhibit CW3/D/2, whereas reply dated 29.5.2002 is Exhibit CW3/D/3. An affidavit filed by Dalip Singh father of Harjinder Singh was produced as Exhibit CW3/D/4.

The certified copies of the report under Section 173 and copy of the judgment in FIR No. 27 dated 7.2.2003 were produced on record as Exhibit C1 and C2, whereas certified copies of reports under Section 173 and judgments in respect of FIR Nos. 28 and 29, were produced as Exhibits C.3 to C.6, respectively. Such documents were admitted into evidence as the learned counsel for the appellants stated that they had no objection in admitting such documents in evidence, but the documents attached with the report under Section 173 of the Code were objected to be not admissible per-se. After such evidence was led, the District & Sessions Judge (Vigilance), Punjab, was directed to record the statement of accused under Section 313 of the Code in respect of the circumstances which have come on record by way of additional evidence. Such statements under Section 313 of the Code have been recorded by the learned District & Sessions Judge (Vigilance), Punjab, on 26.2.2010 and the recorded forwarded to this Court. The statement of Harjinder Singh under Section 313 of the Code was recorded on 25.2.2010 after the additional evidence was allowed by this Court. He has stated that the entire evidence against him is false and fabricated because of the matrimonial dispute with his wife Smt. Charanjit Kaur, suffering from schizophrenia. He and his whole family had very good relations with his son Baghel Singh, who actively participated in the last rites of his father being a responsible eldest grand son of the family.

The arguments raised by learned counsel for the parties are required to be examined separately vis-à-vis assailants and Harjinder Singh. Firstly, we will take up the case against the assailants. Circumstantial evidence against the assailants is that of last seen by PW 9 Bhajan Singh; recovery of Dah from accused Satwant Singh and knife from accused Harwinder Singh; Report Exhibit P.33 of the Forensic Science Laboratory, Chandigarh is comparison of foot prints recovered from the site of occurrence and from the sample foot moulds and Exhibit P.61 is the report of Finger Print Bureau, Phillaur, in respect of comparison of photographic impression of the assailants from the glass tumbler and liquor bottle from the room of Baghel Singh. The recovery of Dah and knife from Satwant Singh and Harwinder Singh, respectively, foot moulds of foot prints immediately after the occurrence from the room of Baghel Singh were found to be comparable with the shoes of accused Manjit Singh, Harwinder Singh and Satwant Singh. Finger prints appearing on the material objects Exhibits MO6 to MO9 were compared with the finger prints of accused Harwinder Singh, Manjit Singh and Satwant Singh, which stood matched with the impression of the accused.

PW1-Manandeep Singh has deposed that Baghel Singh came running to him at 9.30 p.m. on 21.1.2003 and told him to call his landlord as certain persons are sitting in his room drinking liquor. From the aforesaid statement, it stands proved that certain persons were sitting in the room of Baghel Singh when he went to call Manandeep Singh, his college mate, when he found unidentified persons sitting in his room. The finger prints from the glass tumblers and from the almost empty liquor bottle, foot prints from the place of occurrence recovered on 22.1.2003 matched with that of the assailants. Apart from such scientific evidence, the recovery of knife and Dah vide recovery memo Ex P22 and P24 from two of the accused conclusively proves the guilt of all the assailants in the commission of crime.

Learned counsel for the aforesaid appellants has argued that the prosecution story is unbelievable. It is argued that as per the Investigating Officer Ajay Pal Singh, there was some liquor in the bottle recovered on 22.1.2003, but in the report Exhibit P.61, the bottle has been reported to be empty.

We do not find any merit in the said argument. Ajay Pal Singh while appearing as PW6 has deposed that a bottle of country made liquor was also found in the room from which substantial liquor was found consumed. The said witness has not been cross-examined on the question of extent of liquor at the time when the bottle was sealed or that the bottle recovered from the room has in any way been tinkered with or there is any other manipulation either in the recovery of bottle or of sending the same to the Finger Prints Bureau. The quantity is said to be small in the bottle. How small was it, is not on record. Small quantity may result into evaporation of the contents. Since there is no cross-examination on the extent of liquor or any doubt created in respect of the identity of the bottle recovered containing finger prints, the argument raised by the learned counsel for the appellants in respect of the contents of bottle, which are not subject matter of any question relating to manner of commission of crime is wholly untenable.

Learned counsel for the assailants has further argued that the sample was received by the Forensic Science Laboratory on 31.3.2003. Such delay in sending of samples for comparison throws doubt on the truthfulness of the prosecution story.

PW6-Ajay Pal Singh has deposed that whenever recovery of an item was effected during investigation in this case, on coming to the Police Station, he kept on depositing such items with MHC from time to time. The witness has stated in response to the sole question put by the counsel for Harjinder Singh and Sumandeep Kaur that he did not personally know Harjinder Singh - accused nor he could tell that how long he remained posted in Punjab Police and station of posting and that he never worked under him. In the cross- examination conducted by the counsel for the assailants, he admitted that Harjinder Singh came at the place of occurrence, but he did not know when he had come there. Before arrival of Harjinder Singh he had yet to start effecting recoveries and on recovery memos, Harjinder Singh signed being witness and one recovery memo was signed by Manandeep Singh as witness. He has not taken into possession any document, which could show that Bhajan Singh and Surjit Singh were liquor contractors and that he did not verify as to for what purpose they had to go to Jagraon on 23.1.2003.

During the course of proceedings on 27.4.2007, it came to the notice of the Presiding Officer that report of the Finger Prints Bureau, Phillaur, is not available, though the finger prints obtained from the material objects were forwarded to the laboratory at Phillaur through Constable Ramesh Kumar on 3.3.2003. The learned trial Court allowed an application under Section 311 of the Code, for additional evidence to produce the report of the Finger Print Bureau, Phillaur. It was noticed that while submitting report under Section 173 of the Code, a note was made that the report of the Finger Print Bureau is awaited. It was found that Ahlmad had made six parts of the file due to voluminous documents and all the parts of the files were not being put up before the Court on the dates fixed for hearing. It was observed by the Court that the Finger Print Bureau report was not on the file. But subsequently, it was found on 15.6.2007 that the report was in fact produced before the Court under the orders of Shri J.S. Chawla, the then Additional Sessions Judge, Moga. In view of the said fact, ASI Ajay Pal Singh was permitted to tender such report in evidence being admissible under Section 293 of the Code. In pursuance of such order Ajay Pal Singh has entered into witness box on 20.8.2007. He has proved the finger prints charts of accused Jugraj Singh as Exhibits P.53 and P.54; Harwinder Singh as Exhibits P.55 and P.56 and that of Manjit Singh as Exhibits P.59 and P.60.

These finger prints charts along with the preserved finger prints on material objects were sent to Finger Print Bureau Phillaur, through Constable Ramesh Kumar for the purposes of comparison. Exhibit P.61 is the report received from the office of Finger Print Bureau, Phillaur. He has deposed that so long the material objects and charts remained with him, neither he tampered with the same nor allowed anyone to do so.

In the cross-examination by the counsel for the accused- Harjinder Singh, he has stated that accused-Harjinder Singh met him in the Police Station and recovery was effected in his presence. He has further stated that Charanjit Kaur met him after one/two days of registration of the FIR. In answer to one of the questions he has deposed that he called accused-Harjinder Singh that some unidentified dead body was traced and he should come to identify the same. Such message was probably conveyed to him at Kapurthala, but he did not remember that such information was conveyed to him on his cell phone or on landline phone. In the cross-examination by the counsel for the assailants, he deposed that it was SHO Arvind Puri, PS Jagraon, who told him about the arrest of the assailants, but he could not tell about the exact date and month of such information. He has deposed that the material objects i.e. scratched cement, were sent to the Forensic Science Laboratory on 30.1.2003. He denied the suggestion that the finger prints were not sent to Finger Print Bureau, Phillaur, as they were not available with them on that day and that no finger prints were taken from the spot on 22.1.2003.

PW11 is Head Constable Shinderpal Singh, who has tendered his sworn affidavit Exhibit P.38. This witness has not been cross-examined by any of the accused. In affidavit Exhibit P.38, he has averred that on 22.1.2003, SI-Ajay Pal Singh deposited in Malkhana the case property consisting of one parcel of blood stained cement, one parcel of sample cement, four moulds, one parcel of liquor bottle, four glasses, one black turban, one lock sealed with the seal of 'APS' along with sample seals and three wooden sticks in good condition. ASI Surjit Singh deposited one parcel of piece of headless dead body; one bottle of blood of Charanjit Kaur on 29.1.2003; ASI Surjit Singh deposited one bottle parcels of blood of Harjinder Singh on 4.2.2003. SI Ajay Pal Singh deposited in Malkhana parcels of sandals of the accused arrested in the case on 7.2.2003. Three parcels of shoes of Manjit Singh, Harwinder Singh and Satwant Singh were deposited by ASI Surjit Singh on 14.2.2003 whereas the dah and knife recovered from the accused were deposited on 15.2.2003 by SI Ajay Pal Singh. He has further stated that on 30.1.2003, parcel of blood stained cement and sample cement was handed over to constable Jarnail Singh, whereas 4 parcels of moulds 1, 2 and 3 were handed over to constable Jarnail Singh on 7.2.2003 for examination to the office of Director, Forensic Science Laboratory, Chandigarh. He also handed over one parcel of liquor bottle and four parcels of glass for submission to Director, Finger Prints Bureau, Phillaur, through Constable Ramesh Kumar on 7.2.2003. He has also deposed regarding depositing of samples for DNA test. The affidavit is further to the effect that Head Constable Jarnail Singh handed over receipts dated 30.1.2003 and 7.2.2003 in respect of receipt of samples by the laboratories. The sample sent through Constable Ramesh Kumar was handed over to him on 11.2.2003 along with the report by Director, Finger Print Bureau, Phillaur and kept the case property in Malkhana. It was on 31.3.2003, search slip of accused arrested in the case i.e. Jugraj Singh, Harwinder Singh, Manjit Singh and Satwant Singh were got prepared from the Court and two copies of which in sealed envelope and report dated 10.2.2003 along with the photographs of thumb impressions were sent to the office of Director, Finger Print

Bureau, Phillaur, through constable Ramesh Kumar.

On the other hand, Constable Ramesh Kumar has appeared as PW14 and tendered into evidence his affidavit Exhibit P.52. In affidavit Exhibit P.52, he has stated that MHC-Shinder Pal Singh has handed over one parcel of theka liquor bottle and four parcels of glasses on 7.2.2003 in order to deposit the same in the office of Finger Prints Bureau, Phillaur. Such parcels were deposited on 7.2.2003, but returned on 10.2.2003. The same was handed over to MHC, Shinder Pal Singh on 11.2.2003. He also handed over one parcel of sandals of accused Jugraj Singh and three parcels of shoes of accused Manjit Singh, Harwinder Singh and Satwant Singh in the office of Director, Forensic Science Laboratory, Chandigarh on 3.3.2010. He deposited the same in the office of Director, Forensic Science Laboratory, Chandigarh on 4.2.2003 and after obtaining receipt handed over to MHC. It was on 31.3.2003, he was handed over one envelope of two sealed copies of search slips of accused Jugraj Singh, Harwinder Singh, Manjit Singh and Satwant Singh along with report dated 10.2.2003 along with the photographs of thumb impressions for deposit in the office of Director, Finger Print Bureau, Phillaur and the same was handed over on 31.3.2003 after obtaining receipt of the parcels in good condition. He has further stated that he did not tamper with it nor allowed anyone to do so, during the period the case property remained with him.

The Investigating Officer- Ajay Pal Singh; MHC Shinder Pal Singh and Constable Ramesh Kumar have not been cross- examined in respect of any tampering with the samples or the contents of the parcels. In fact, not a single question has been directed to MHC Shinder Pal Singh. The witnesses have deposed that the samples were taken to Director, Forensic Science Laboratory on 10.2.2003 and returned with the report and deposited with MHC. There is no evidence of any tampering with of any of the samples when the same was in the custody of the Police. Thus mere fact that these were sent on 31.3.2003 is not a ground to doubt the prosecution case. There is no evidence of any prejudice suffered by accused on account of sending of samples for the purposes of comparison on 31.3.2003. Therefore, we do not find any merit in the argument raised that sending of samples on 31.3.2003 creates suspicion on the prosecution case set up against the appellants.

In view of the above, we do not find that there is any illegality in the judgment of the learned trial Court convicting the assailants for causing death of Baghel Singh.

In respect of the culpability of Harjinder Singh, we would like to examine the evidence on record prior to death of Baghel Singh relevant to examine motive in commission of crime and the circumstances including conduct of Harjinder Singh on record at the time of death of Baghel Singh and thereafter.

Circumstances prior to the death of Baghel Singh Harjinder Singh and Charanjit Kaur were married in the year 1981. Baghel Singh is their eldest son. The parties started living separately since the year 1998 though at some places the evidence is since the year 1994 parties are living separately. Harjinder Singh is stated to have relations with Sumandeep Kaur. Earlier, there were proceedings between the parties for judicial separation in the year 1994 at Kohima. The same was allowed but later the said order was withdrawn on an application filed by Harjinder Singh in the year 1994. Harjinder Singh filed another petition at Kohima for dissolution of marriage. The said petition was

transferred to Patiala in the State of Punjab by Hon'ble Supreme Court.

The judgment of the trial Court in the petition for dissolution of marriage filed by Harjinder Singh under Section 13 of the Hindu Marriage Act, 1955, has been produced in additional evidence as Exhibit C.7. The said judgment shows that a petition under Section 10 of the Hindu Marriage Act, 1955 was allowed by the Kohima Court and that the said decree has been set aside on 12.12.1994. Exhibit R.3 is an affidavit (copy filed in Divorce Proceedings) submitted to the Court at Kohima to withdraw mutual divorce petition No. 1/1994 filed on 16.5.1994 and to cancel decree of judicial separation and that the marriage solemnized on 8.5.1981 be restored. Exhibit R.2, is the affidavit of Harjinder Singh, filed in the proceedings at Patiala that he will not file any matrimonial suit regarding the past of his wife on account of Schizophrenia and that he will not go for second marriage even after his retirement. He will never go for divorce and Charanjit Kaur is the incharge of his children and custody of the children shall always remain with her. He will pay their full expenses and the children will not go to hostel against her wishes. Harjinder Singh has averred in the said affidavit that the custody of the children shall always be with the wife as in the past till today. The learned Matrimonial Court returned a finding that Charanjit Kaur is not suffering from mental disorder which makes it difficult or impossible for Harjinder Singh to reside with her. In view of the said finding the petition for dissolution of marriage was dismissed. The said judgment has recorded a categorical finding that Charanjit Kaur is not a schizophrenic patient. The appeal against the said judgment was dismissed for non-prosecution on 19.7.2006 vide order Exhibit C.9 of this court.

The argument of Shri Cheema, learned counsel for Harjinder Singh, is that Charanjit Kaur has not examined herself in the matrimonial proceedings, is not relevant, as we are not in appeal over the judgment Exhibit C.7 passed by the Matrimonial Court. The fact remains that the Matrimonial Court has recorded a finding that Charanjit Kaur, is not suffering from schizophrenia. The said finding is relevant being judgment of the Matrimonial Court, where status of wife of Harjinder Singh was directly in issue. It also relates to a matter of public nature i.e. administration of criminal justice.

Charanjit Kaur has also produced order dated 18.5.2002, Mark-A passed by Lok Adalat of this court in an appeal filed by Harjinder Singh. In the aforesaid order, Baghel Singh and Kiranjit Kaur, sister of Charanjit Kaur, are recorded to be present before the Lok Adalat seized of the matrimonial appeal. On 3.8.2002, vide order Mark-B, Charanjit Kaur has put in appearance along with her son for reconciliation. The said orders are certified copies of the proceedings before this Court. Therefore, such orders are admissible in evidence under section 74 of the Evidence Act and thus admitted into evidence as Exhibit C.10 & C.11, respectively.

Before the learned trial Court, in defence, Harjinder Singh has produced Malkiat Singh, Senior Assistant, Mental Hospital, Amritsar, who has produced the record of admission of Charanjit Kaur admitted in the Hospital on 20.8.1990 and discharged on 23.8.1990. DW2- Dr. A.R. Garg has identified his signatures on the copy of original certificate regarding mental state of affairs of Charanjit Kaur, which was marked as Mark-X/1. Charanjit Kaur is purported to be admitted in the hospital with effect from 2.10.1990 to 3.10.1990. He has not produced any record regarding original of the aforesaid certificate. DW3-Ramesh Chand Sharma was examined to produce the record from

the institute of Human Behaviour and Allied Science, Delhi. He has deposed that such record was produced in the Court of Additional District Judge, Patiala. Such evidence led by Harjinder Singh is in respect of admission of Charanjit Kaur for 3 days in the year 1990 and an unproved certificate issued in the year 1991. Such document does not lead to any inference that Charanjit Kaur was a schizophrenic patient and has any abnormal behavior. In fact, Charanjit Kaur has given a lengthy statement as PW3 running into almost 9 typed pages. Her cross-examination is recorded in almost 6 typed pages. A schizophrenic patient would not be able to give such testimony. The learned Presiding Officer has not recorded any abnormal behavior of Charanjit Kaur, which may be relevant to infer that she is a schizophrenic patient. Thus, we do not find any merit in the defence of Harjinder Singh that his wife Charanjit Kaur was a schizophrenic patient. There is no evidence that Charanjit Kaur is continuously suffering from schizophrenia from the year 1991 onwards.

It is a categorical stand of Charanjit Kaur as PW3 that her husband was living with Sumandeep Kaur and she has found them living together in Delhi in the year 1998. She has deposed that she was not provided with any maintenance or the expenses for the study of her children. Her son was demanding expenses from her husband. She has also deposed that in fact, before this Court her husband identified Baghel Singh as her brother.

CW3-Rajib Sarkar, has produced letter Exhibit CW3/1, original of Exhibit P.10. Exhibit CW3/1 is the letter dated 20.6.2002 written by Baghel Singh on behalf of his mother Charanjit Kaur in response to the communication by the Department examining the misconduct of Harjinder Singh of allowing Sumandeep Kaur to stay in a Government House. Exhibit CW3/2 is the complaint made by mother-in-law of Harjinder Singh in respect of Sumandeep Kaur staying in Government Accommodation as wife of Harjinder Singh. CW3/3 is the reply of Harjinder Singh. Rajib Sarkar also produced original departmental files on 19.2.2010, which were retained in the Court after furnishing the photo copies of both the files to the witness for the official use of the department.

The argument of Shri Cheema is that Harjinder Singh has no notice of communication Exhibit CW3/1 as the same was not sent to him by the Department at any stage. Therefore, Harjinder Singh can not possibly nurse any grievance against Baghel Singh is not made out. The inquiry file produced by CW3-Rajib Sarkar shows that many letters have been addressed to Harjinder Singh while conducting preliminary inquiry before formally charge sheeting him in April 2003. A report of the preliminary inquiry conducted into the allegations of stay of Sumandeep Kaur as wife of Harjinder Singh in the Government House allotted to him at New Delhi and also in the Government Accommodation at Srinagar is Exhibit CW3/4 dated 17.8.2002. Such report makes detailed mention of the number of communications exchanged between department and Harjinder Singh and also the communications from Baghel Singh on behalf of his mother. Charanjit Kaur has deposed that her husband has enquired from her son as to whether he had written letters to his department. Baghel Singh said in positive. Such part of her statement has not been even suggested to be incorrect. In fact, the cross examination is primarily directed towards her being schizophrenic patient. Therefore, the argument that Harjinder Singh was not aware of the communications addressed by Baghel Singh to the employer of Harjinder Singh so as to have any grudge against Baghel Singh is not believable.

Harjinder Singh has admitted visit to his wife's house at Nabha on 7.1.2003. It was during the said visit, he has given a carrot to his son Baghel Singh to visit Kapurthala in relation to execution of Will by his father. Charanjit Kaur was to support three children and herself and when one of her son was in professional institute. The divorce petition filed by Harjinder Singh was dismissed on 6.11.2000. In appeal, the efforts for reconciliation remained unsuccessful and it was on 18.5.2002, Baghel Singh has in fact, appeared before this Court. Charanjit Kaur has deposed that Harjinder Singh was not liking his son Baghel Singh and even Baghel Singh was not liking Harjinder Singh. The said deposition has gone uncontroverted. That was the period when the employer of Harjinder Singh was also proceedings with the preliminary departmental inquiry. The pressure of such departmental inquiry and failure of the matrimonial proceedings shows that there could not be any cordial relations between Harjinder Singh and his wife Charanjit Kaur and between him and his son Baghel Singh. Therefore, we find that relations between Harjinder Singh and his wife Charanjit Kaur and between Harjinder Singh and his son Baghel Singh, were not cordial. Circumstances around the time of death of Baghel Singh and thereafter.

It is admitted by Harjinder Singh and as deposed by PW 3 Charanjit Kaur that Harjinder Singh visited Nabha on 7.1.2003 and asked his son Baghel Singh to visit his parents at Kapurthala as they intended to execute a Will in his favour. The said representation came all of a sudden. Such offer was made when the preliminary inquiry stood concluded against Harjinder Singh returning a finding that the charges against Harjinder Singh are liable to be further investigated. The said offer was a carrot to Baghel Singh that his father cares for him. It is so evident when Harjinder Singh in his statement under Section 313 of the Code stated that in fact, his father was not to execute a Will, but the property, which was in the name of his mother, was to be bequeathed by his mother (see answer to question No. 61). What is extent of property of his mother owned by her and bequeathed in favour of his surviving children is not known.

From the evidence on record, the following are some of the circumstances relating to the conduct of Harjinder Singh, which is relevant under Section 8 of the Evidence Act, and leads to the conclusion that murder of Baghel Singh was planned and got executed through the assailants by his father Harjinder Singh. The circumstances are:

A) Arrival of Harjinder Singh at Ajitwal, even before the police started investigations in the case.

i) Harjinder Singh arrived at Ajitwal at about 3.30 pm as is deposed by PW 6 SI Ajay Pal Singh. No question has been put to said witness in this regard by Harjinder Singh. Harjinder Singh in his statement under Section 313 of the Code has admitted that he was present with local police on 22.1.2003 and found that room doors were broken;

liquor bottles were spread; clothes were lying hither and thither along with other articles of Baghel Singh (Answer to Question No 12). In answer to Question No 16, Harjinder Singh has stated that on 22.1.2003, during the spot enquiry, he was called by the police and he has seen blood stains on the wall and ground. Thus from the statement of IO corroborated with the answers of the accused in his statement under section 313 of the Code, it stands proved that Harjinder Singh came to Ajitwal even

before the Investigating Officer could commence his investigation i.e. recoveries from the spot were yet to be effected.

ii) PW 3 Charanjit Kaur has stated that her husband was already at Ajitwal when she reached that place. Shri Narsingh Dass Aggarwal, the Principal of the College, has been examined as CW₁. He has categorically stated that he did not inform Harjinder Singh. He has produced the admission record of Baghel Singh (Ex C₁). Harjinder Singh has admitted said record to be correct in his statement under section 313 of the Code. The witness has denied the suggestion that he replied to the telephone call made by Harjinder Singh. The record contains the address of mother and maternal grand mother of Baghel Singh alone.

Address or Telephone Number of Harjinder Singh is not available in the records of the College. Shri Narsingh Dass has been suggested that he replied to the telephone call made by him. He denied any knowledge that his mother in law has given information through telephone. In statement under section 313 of the code, he stated that his mother in law has informed him about missing of Baghel Singh. The relations between Harjinder Singh and his mother-in-law are far from cordial, which is evident from the departmental proceedings initiated against Harjinder Singh, initiated on the basis of the complaint of mother-in-law of Harjinder Singh. The said answer is not substantive evidence. In fact Harjinder Singh has taken different stand at different times.

iii) The argument of learned counsel for the appellant is that since Baghel Singh has called Kapurthala from PCO, therefore, the contact number was available with prosecution. The said argument has no factual basis. Neither Investigating officer nor Principal nor Charanjit Kaur has been asked any question in this respect. Harjinder Singh is proved to have arrived at Ajitwal without any information from any person including his friends Bhajan Singh and Surjit Singh, who have been introduced at the witnesses of last seen. Thus Harjinder Singh reached Ajitwal without any information from any person to give direction to the investigation in particular manner. The Investigating Officer has conducted the investigations as directed by Harjinder Singh even though Charanjit Kaur has expressed suspicion in respect of the manner of investigation.

B) Harjinder Singh guided investigations after arriving at Ajitwal.

iv) Exhibit P.1, the complaint by Manandeep Singh to the Principal of the Lala Lajpat Rai Memorial Polytechnic, Ajitwal, Moga, is the first version of the manner of occurrence. Manandeep Singh has not made any reference to the Esteem Car or its number; Jugraj Singh- landlord of Baghel Singh or Manjit Singh, accused, as is made in his supplementary statement (Ex P.2) recorded on the same date under section 161 of Code. It is impossible to imagine that Manandeep Singh will omit to give name of landlord of Baghel Singh in the first statement (Ex P-1) as all these students were residing in close vicinity to each other. In fact, Ex P1 is to the effect that he went to Jugraj Singh but none opened door of his house. Manandeep Singh as PW₁ has supported such facts in his statement as well. Manandeep Singh admitted his signatures on Exhibit P.1, but stated that it was written by other students. He has not deposed that any of the contents of letter Exhibit P.1 is incorrect. Therefore, the contents of document Exhibit P.1 at the instance of Manandeep Singh, cannot be doubted, in any manner. He denied giving any other statement though he admits that he has been

interrogated by police. He has denied seen any person in Ajitwal or in front of room of Baghel Singh in suspicious circumstances. He was declared hostile and has been cross examined by the public prosecutor. He denied various parts of revelations disclosed in his statement Ex P2.

Manandeep Singh as witness was sweating "under fear" as is recorded by Court. He states that Gogi is the landlord of Baghel Singh but Jugraj Singh @ Gogi present in court is not the same person. This aspect of the statement is of a young boy under fear. In fact, statement Exhibit P.2 has been recorded by Investigating Officer after the arrival of Harjinder Singh at Ajitwal at about 3.30 pm. The time of recording of FIR is also 4.00 pm though ruqa for such FIR was sent at 3.30 pm. Ex P-3 is the recovery memo of blood stained earth and sample earth, blood stained cement and sample cement from the room of Baghel Singh was taken in the presence of PW 1 Manandeep Singh. The recoveries of Liquor Bottle; four empty glasses, turban, foot moulds etc vide Ex P-14, P-15, P-16 and P-17 was effected from the spot on 22.1.2003 in the presence of Harjinder Singh. Thus, Harjinder Singh as a Police Officer after arriving at Ajitwal put the course of investigation by SI Ajay Pal Singh in the manner suggested by him.

v) PW6, SI Ajay Pal Singh has deposed that Harjinder Singh is SP in CRPF as was told to him by Harjinder Singh when he came to him. He further states before arrival of Harjinder Singh, he had yet to start effecting recoveries. Harjinder Singh becomes witness of recovery of Bottle, Glasses, foot moulds etc on 22.1.2003 itself. The IO has recorded statements of Manandeep Singh and Harjinder Singh on 22.1.2003. The identity of suspects is made known to the IO on 22nd itself when the supplementary statement of Manandeep Singh was recorded. The IO made search for the assailants on 23rd and 24th January. It was on 26th, statements of Bhajan Singh and Surjit Singh was recorded under Section 161 of the Code.

vi) The statement of Bhajan Singh under section 161 of the code is to provide credit to the Investigating Officer of having cracked the case of missing and/or death of Baghel Singh. Bhajan Singh when examined as PW7, prior to the summoning of Harjinder Singh as an accused, supported assailants and was declared as hostile witness. Such conduct of the witness is to ensure the acquittal of the assailants during the course of trial. The witness takes a complete somersault when Harjinder Singh is summoned as accused. Bhajan Singh as PW 9, admitted that he is very well known to Harjinder Singh. He supports the prosecution case as originally set up completely. Therefore, the manner in which the investigations were carried out and the witnesses introduced unmistakably suggests that the investigations were given a direction to believe a story set up by accused Harjinder Singh.

vii) Bhajan Singh and Surjit Singh are close friends of Harjinder Singh, introduced as witnesses of last seen. Charanjit Kaur appearing as PW 13, prior to summoning of Harjinder Singh, has deposed about their relationship with accused even when there was nothing on record at that stage to suggest the link between these two persons and Harjinder Singh. Bhajan Singh admitted his relationship with Harjinder Singh as well as of that of Surjit Singh appearing as PW 9. Harjinder Singh has admitted his acquaintance with both of them in his statement under Section 313 of the Code. Such witnesses have been introduced to support the investigating officer to conclude investigations.

viii) Surjit Singh and Bhajan Singh are both residents of Kapurthala, the place of residence of Harjinder Singh. They are well known to Harjinder Singh and to the family. The normal human behavior is to inform the near and dear of the student, in this case at least father, but both of them have kept silence. In fact, it is Harjinder Singh, who introduced these two witnesses to the Investigating Officer on his arrival at Ajitwal as witnesses of the last seen. It is, thus, apparent that till such time Harjinder Singh was guiding the investigation, the witnesses were supporting the assailants, but the moment Harjinder Singh was made to stand trial, the entire game underwent change and the witness Bhajan Singh changed colour and supported Harjinder Singh and deposed in favour of Harjinder Singh and against the assailants. Thus, the primary motive of Bhajan Singh is to save Harjinder Singh.

C) Arrest of the assailants by Jagraon Police and role of Harjinder Singh in such cases.

ix) The Police of Police Station Jagraon, arrests the
assailants on 7.2.2003 and in the same car, the
number of which was said to disclosed by

Manandeep Singh in his supplementary statement Exhibit P.2 recorded by ASI Ajay Pal Singh. The Police of Jagraon has acted on secret information as per Judgment of Ludhiana Court Ex C2 dated 20.10.2008, acquitting Harwinder Singh for an offence under section 399 and 402 IPC. Ex C4 and Ex C6 are the judgments convicting Harwinder Singh and Manjit Singh for an offence under the Arms Act. The secret informant can be none else but Harjinder Singh as is evident from the circumstances mentioned hereinafter.

x) As per defence version, Baghel Singh was wearing Karra, Ring and watch - pulsar when he left Kapurthala. The said articles are recovered from the assailants by the Jagraon Police at the time of their arrest on 7.2.2003. DW4 HC Harchand Singh has produced the record pertaining to cases lodged against the assailants by Jagraon Police. He has taken out the case property from the malkhana and produced before the Tehsildar for the purposes of identification. DW5 ASI Surajpal Singh has proved the memo of identification of the case property. He was posted at PS Mehna at that time.

xi) Harjinder Singh was not the official informant or
complainant in respect of the arrest and

investigations of the assailants by Jagraon Police. But, he participates in the identification of the articles recovered along with his jeweller - Ramesh Kumar from Kapurthala on 18.2.2003. DW5 - ASI Suraj Pal Singh, then posted at PS Mehna, has stated that Harjinder Singh and Ramesh Kumar

were with SHO on 18.2.2003 and they accompanied him to Jagraon. It is SHO who has written an application for filing before the court but the police file was not given to the said witness. The SHO has sent the said police official for identification of articles, without any information or message from Jagraon police for such identification. Exhibit D.12 is the identification memo dated 18.2.2003 of such articles by Harjinder Singh in the presence of Ramesh Kumar, the jeweller and ASI Suraj Pal Singh. The statement of CW2- SI Gurmeet Singh is categorical to the effect that no information was sent by Jagraon Police to Mehna Police, the police station in question, in respect of identification of the recovery of the articles. There is no wireless message, special messenger or any other mode of communication and that there is no record of any information sent to Police of Mehna in respect of identification parade of the articles is available. The recovery of such articles and later identification process is thus at the instance of Harjinder Singh as a step in aid of deflected investigation process. The robbery is not the motive as Baghel Singh is not a person of means. PW 3 Charanjit Kaur has deposed that Baghel Singh had no enemy. The recovery of such articles by Jagraon Police and later identification by Harjinder Singh shows that the entire process was first to prove the act of crime by the assailants but later on to make witnesses resile in evidence which would ensure acquittal of the assailants as well.

xii) Harjinder Singh earlier appearing as PW 8, has deposed that Baghel Singh was wearing such articles. He was not at Kapurthala when Baghel Singh left Kapurthala. Therefore, his statement that Baghel Singh was wearing such articles is to provide link to the Investigating Officer to associate the assailants with the crime. Therefore, travelling of the assailants in the same stolen car and recovery of such insignificant articles from the assailants shows that the investigations were being directed by Harjinder Singh at Mehna and Jagraon. D) Other circumstances

xiii) Bhajan Singh and Surjit Singh are friends of Harjinder Singh. Harjinder has lost his son but still Bhajan Singh appearing as PW 7, prior to summoning of Harjinder Singh, did not support prosecution though he was an important witness of lastly seen Baghel Singh in the company of the assailants. Harjinder Singh was only watching interest of killers of his son at that stage.

xiv) The movements of Baghel Singh were being tracked. It is apparent from the fact that moment he entered his room, after having food, he found three/ four persons sitting in his room having liquor. As per statement of PW 3 Charanjit Kaur Baghel Singh has telephoned Kapurthala as desired by mother of Harjinder Singh after reaching Ajitwal. PW1 Manandeep Singh has also stated that Baghel Singh met him at PCO, where he had gone to make a call. Harjinder Singh in his answer to Question No. 65 has stated that he reached Kapurthala in the evening. Therefore, by the time, Baghel Singh reached Ajitwal, his father has reached Kapurthala.

xv) The story that Bhajan Singh and Surjit Singh came to visit Ajitwal for the purposes of selling of sugarcane is again not believable. A person is not likely to cover a distance of 70/75 kilometres for selling of sugarcane when there was a sugar mill near their village.

xvi) The Investigating Officer has deposed that he has informed Harjinder Singh of recovery of headless dead body though he is not able to remember whether the information was given on landline phone or mobile phone. Harjinder Singh has asked only one question in the cross

examination to the Investigating Officer i.e. of any acquaintance of the Investigating Officer with Harjinder Singh. The question asked is relevant. Such question is to show that the fair investigation was carried out by the Investigating Officer. But the record shows that Harjinder Singh got the investigation conducted in a manner desired and planned by him, as he was present with the Investigating Officer at all such stages of investigation.

xvii) As per evidence on record, Harjinder Singh is available at the time of recoveries except recovery of scratched cement and at the time of recovery of dead body. He is satisfied with the investigations as only question asked is acquaintance of IO with him. He is the person who gave direction to investigation officer, provided clues and got the assailant arrested to show his interest in the outcome of investigation but the real motive was hidden. He was disturbed from the departmental action and failure of matrimonial proceedings. Baghel Singh, a grown boy, was potential threat to him.

xviii) What was the reason with Harjinder Singh to oppose the statement of Charanjit Kaur, his wife to appear as a witness, who was cited as a witness for the purpose of identification of the dead body alone? Harjinder Singh resisted her testimony for the reason that she will spill the beans and unfold the story of untruthfulness and deceit. Father of Harjinder Singh died on 16.1.2003, but he has not joined for the last rites of his father. He reached Kapurthala on 21.1.2003 after Baghel Singh had left that place. It may be coincidence or may be by design that he reaches his home after the Bhog ceremony of his father, which was attended to by Baghel Singh. But the fact is that, he reaches the place of occurrence without having received any information from any person.

The circumstances, enumerated above lead to only one conclusion that the assailants acted at the instance of Harjinder Singh. There is never a direct evidence of conspiracy. In *Noor Mohammad Mohd. Yusuf Momin v. The State of Maharashtra*, AIR 1971 Supreme Court 885, it has been held that conspiracy from its very nature is generally hatched in secret. It is, extremely rare that direct evidence of proof of conspiracy can be forthcoming from wholly disinterested quarters or from utter strangers. But, like other offences, criminal conspiracy can be proved from circumstantial evidence. Indeed in most cases proof of conspiracy is largely inferential though the inference must be founded on solid facts. Surrounding circumstances, antecedent and subsequent conduct, among other factors, constitute relevant material. It is such circumstances, when placed together, shows the meeting of minds of assailants and Harjinder Singh in commission of crime. What was consideration or the terms between Harjinder Singh and the assailants, can be known to them alone. But, the facts and circumstances, which have come on record leave no manner of doubt that the assailants were working for Harjinder Singh. Harjinder Singh has grievances against his adult son, who has written letter to his employer and was thus, creating problems in discharge of his official duties. Thus, we have no hesitation to hold that it was Harjinder Singh, who was the master mind in planning; conspiring and executing the death of his son Baghel Singh with astuteness by putting investigation into a guided track and then making the witnesses to turn hostile. It was a conspiracy, which can be said to have put to action from 7.1.2003 when Harjinder Singh coaxed his son to visit Kapurthala for the purpose of Will of his father. It is most unfortunate that a father, who is responsible for bringing his son in this World, has taken the life of his son for the reason that he became inconvenient for his pursuits.

The argument raised by Shri Cheema that Charanjit Kaur was inimical towards Harjinder Singh and she is full of hatred, therefore, her statement is settling scores of matrimonial disputes, is not tenable. Even if she hates Harjinder Singh, but the said hate by itself is not proving the involvement of Harjinder Singh in the crime. In fact, it is the conduct of Harjinder Singh before and after the occurrence, which leads to an irresistible conclusion that he alone is responsible for eliminating Baghel Singh. In fact, Harjinder Singh was distancing himself from Charanjit Kaur and his children since the year 1994 when matrimonial proceedings were initiated between the parties and Charanjit Kaur was branded as Schizophrenic patient. The situation reached at flashpoint when departmental proceedings had been initiated at the instance of his wife's family including Baghel Singh. It is in the said background, the murder of Baghel Singh was planned and executed.

Thus, we do not find any illegality in the findings recorded by the learned trial Court. We consequently upheld the conviction of the assailants and Harjinder Singh.

Coming to question of sentence, the assailants and Harjinder Singh have been sentenced to death. Though the offence is heinous as it is the father, who has killed his son by meticulously planning and executing a conspiracy. But we find that it is not a rarest of the rare cases, which may justify imposition of death penalty on all the convicts. Therefore, in view of the judgment in *Swamy Shraddananda @ Murali Manohar Mishra v. State of Karnataka* (2008) 13 Supreme Court Cases 767, we substitute the punishment of death sentence imposed upon Harjinder Singh to life imprisonment and a fine of Rs.2 lacs, realizable as arrears of land revenue, which shall be paid as compensation to Charanjit Kaur. We further direct that Harjinder Singh shall not be released from the prison for rest of his life and shall not be entitled to any remissions as he is the master mind who planned and got executed murder of none else but his son.

The death sentence imposed on the assailants cannot be said to be rarest of rare case warranting death sentence. Therefore, the death sentence imposed upon three assailants is substituted for that of life imprisonment and a fine of Rs.25,000/- each, to be paid as compensation to Charanjit Kaur. In default of payment of fine, the assailants shall undergo further RI for a period of one year each.

In view of the above discussion, the Murder Reference seeking confirmation of the death sentence is declined. The appeals are dismissed, but with modification in sentence i.e. sentencing the appellant-Harjinder Singh to life imprisonment and a fine of Rs.2 lacs, realizable as arrears of land revenue, which shall be paid as compensation to Charanjit Kaur. Harjinder Singh shall not be released from the prison for rest of his life and shall not be entitled to any remissions, whereas appellants-Manjit Singh, Satwant Singh and Harwinder Singh are sentenced to life imprisonment and a fine of Rs.25,000/- each, to be paid as compensation to Charanjit Kaur. In default of payment of fine, the assailants shall undergo further RI for a period of one year each.

[Hemant Gupta] Judge [Jaswant Singh] Judge May 12, 2010 ds